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Application No. 07 011 162.0 - 2123	Ref. 0464-AB-EU - Me	Date 03.01.2011
Applicant Chih-Hsiung, Lin		

Communication pursuant to Article 94(3) EPC

The examination of the above-identified application has revealed that it does not meet the requirements of the European Patent Convention for the reasons enclosed herewith. If the deficiencies indicated are not rectified the application may be refused pursuant to Article 97(2) EPC.

You are invited to file your observations and insofar as the deficiencies are such as to be rectifiable, to correct the indicated deficiencies within a period

of 4 months

from the notification of this communication, this period being computed in accordance with Rules 126(2) and 131(2) and (4) EPC. One set of amendments to the description, claims and drawings is to be filed within the said period on separate sheets (R. 50(1) EPC).

If filing amendments, you must identify them and indicate the basis for them in the application as filed. Failure to meet either requirement may lead to a communication from the Examining Division requesting that you correct this deficiency (R. 137(4) EPC).

Failure to comply with this invitation in due time will result in the application being deemed to be withdrawn (Art. 94(4) EPC).



Economou, Dimitrios
Primary Examiner
For the Examining Division

Enclosure(s): 2 page/s reasons (Form 2906)

Datum
Date 03.01.2011
Date

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Sheet 1
Feuille

Anmelde-Nr:
Application No: 07 011 162.0
Demande n°:

The examination is being carried out on the **following application documents**

Description, Pages

1-22 as originally filed

Claims, Numbers

1-16 received on 30-12-2008 with letter of 30-12-2008

1). With letter dated 28/05/2010 **observations of a third party (art. 115 EPC)** has been filed and communicated to the applicant (rule 114(2) EPC).

TKDL MH1/2650: Julaab Bara-e-Warm-e-Masaanah Haar, Knowledge since 200 Years (=Exhibit 1; = **D15**) discloses a composition for the treatment of cystitis comprising *Zizyphus jujuba*. Hence, in the light of **D15** the subject-matter of claims 1-3,9-12 and 16 is not novel. The subject-matter of claims 4-8 and 13-15 although novel cannot be considered inventive since the contribution of cranberry, or of a calcineurin enzyme activator or of the urine pH stabilizer to the pharmacologic activity of the composition is questionable and there is nothing in the application demonstrating an additional unexpected effect.

TKDL AK/2204: Vrhadgoksuradyavalehah, Knowledge since 200 Years (=Exhibit 2; = **D16**) discloses a composition for the treatment of cystitis and urethritis comprising *Nelumbo nucifera*, and *Cinnamomum ceylanicum*. Hence, in the light of **D16** the subject-matter of claims 1-3,9-12 and 16 is not novel. The subject-matter of claims 4-8 and 13-15 although novel cannot be considered inventive since the contribution of cranberry, or of a calcineurin enzyme activator or of the urine pH stabilizer to the pharmacologic activity of the composition is questionable and there is nothing in the application demonstrating an additional unexpected effect.

TKDL MH5/1994: Safoof Bara.e.warm-e-Masanah, Knowledge since 200 Years (=Exhibit 3; = **D17**) discloses a composition for the treatment of cystitis and urethritis comprising *Malva sylvestris* and *Portulaca oleracea*. Hence, in the light of **D17** the subject-matter of claims 1-5,7,9-14 and 16 is not novel. The subject-matter of claims 6,8 and 15 although novel cannot be considered inventive since the contribution of the urine pH stabilizer to the pharmacologic activity of the composition is questionable and there is nothing in the application demonstrating an additional unexpected effect.

TKDL RG/5556: Brhadgoksuryavalehah, Knowledge since 200 Years (=Exhibit 4; = D18) discloses a composition for the treatment of cystitis and urethritis comprising *Nelumbo nucifera*, and *Cinnamomum ceylanicum*. Hence, in the light of D18 the subject-matter of claims 1-3, 9-12 and 16 is not novel. The subject-matter of claims 4-8 and 13-15 although novel cannot be considered inventive since the contribution of cranberry, or of a calcineurin enzyme activator or of the urine pH stabilizer to the pharmacologic activity of the composition is questionable and there is nothing in the application demonstrating an additional unexpected effect.

TKDL RS/2134: Vrhadgoksuryavalehah, Knowledge since 200 Years (=Exhibit 6; = D19) discloses a composition for the treatment of cystitis and urethritis comprising *Nelumbo nucifera*, and *Cinnamomum ceylanicum*. Hence, in the light of D19 the subject-matter of claims 1-3, 9-12 and 16 is not novel. The subject-matter of claims 4-8 and 13-15 although novel cannot be considered inventive since the contribution of cranberry, or of a calcineurin enzyme activator or of the urine pH stabilizer to the pharmacologic activity of the composition is questionable and there is nothing in the application demonstrating an additional unexpected effect.